

of a manor not permitting an entail is limited to A., and the heirs of his body, the estate is not construed as an entail but as a fee conditional;—that is, on issue born the condition is fulfilled, and A. may alienate in fee. But until alienation, the equitable interest descends in the line of the issue like an entail; and if A. die without issue, an equitable right of entry reverts to the settlor or his heir. This doctrine is attended with important consequences, which are often overlooked. Thus copyholds are devised to trustees upon trusts corresponding with the limitations of freeholds in strict settlement, and A., the first tenant for life, has a son [*48] born, but who lives only a few weeks. If *the manor do not permit an entail, the son takes a fee simple conditional, and all the subsequent limitations are void. In such a case, the copyholds should be settled like leaseholds, so as not to vest absolutely unless a child attain twenty-one, and on his death under that age to devolve on the next taker under the entail of the freeholds.

3. **Equitable interests in foreign personal property.**—How far equitable interests may be engrafted on *foreign* property requires consideration. As regards *movable* estate there is no difficulty, for it follows the person, and if the settlor himself be domiciled within the jurisdiction of the Court, all his movable estate, whether in the East or West Indies, or elsewhere, is deemed to be at home, and governed by the law of this country. A trust, therefore, may freely be created of such interests, and would be enforced in equity. In certain cases, however, there might be practical obstructions in the way of executing the trust, from the circumstance of the property lying in fact beyond the reach of the Court.

4. **Equitable interests in foreign real property.**—As to *lands* lying in a foreign country, the Court will enforce *natural equities*, and compel the specific performance of *contracts*, provided the *parties* be within the jurisdiction, and there be no insuperable obstacle to the execution of the decree.¹

¹ *Massie v. Watts*, 6 Cranch, 160; *Watkins v. Holman*, 10 Pet. 25; *De Klyn v. Watkins*, 3 Sandf. Ch. 185; *Guild v. Guild*, 16 Ala. 121; *Sutphen v. Fowler*, 9 Paige, 280; *Vaughan v. Barclay*, 6 Whart. 392; *Church v. Wiley*, 2 Hill, Ch. 584. Where property in jurisdiction, but person not, see *Spurr v. Scoville*, 3 Cush. 578; *Meux v. Maltby*, 2 Swans. 277.